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EXPLAINED

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What Is the Uniform Civil Code Debate?

What is the Uniform Civil Code debate?

How are personal laws governed today? What does the Constitution say about a UCC? What are the arguments in favour of a UCC? What are the arguments against? How could a UCC guarantee equal women's rights? What alternative has been proposed?

EXPLAINER

Rangarajan R.

The story so far:

Union Home Minister Amit Shah has indicated that the **Uniform Civil Code (UCC)** would be implemented in all 21 NDA-ruled States by 2029. Uttarakhand has had a UCC in force since January 2025, while UCC bills passed by the legislatures of Assam, Gujarat and Madhya Pradesh are awaiting Presidential assent.

How are personal matters governed today?

Article 44 of the Constitution provides that the State shall endeavour to secure a UCC for citizens throughout India. A UCC would apply the same set of secular personal laws to all people, irrespective of religion, caste, or tribe. India already has uniform criminal laws and common civil laws covering matters such as taxation, contracts, and negotiable instruments.

However, in matters such as marriage, divorce, and inheritance of property, various religious communities in India follow personal laws that are based on their religious doctrines. Hindus are governed by laws such as the Hindu Marriage Act (1955) and the Hindu Succession Act (1956), while many tribals within the Hindu religion may follow customary family laws under constitutional exceptions. Jains, Buddhists and Sikhs are covered by Hindu laws. Sikh marriages can also be registered under the Anand Marriage Act (2012). Christians and Parsis have their own personal laws, while Muslims are governed by the Muslim Personal Law (Shariat) Application Act (1937).

What are the pros and cons?

The Constitution makers were divided over including a UCC in the Constitution.



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Some wanted it to be made a Fundamental Right to ensure uniformity in civil laws and secure equal rights for women. However, many members of the Muslim community were not in favour of including it in the Constitution as they felt that a uniform civil code would violate the fundamental right to religion that is guaranteed in Part III. Finally, the provision relating to UCC was placed in the non-justiciable Part IV - Directive Principles of State Policy.

There are several arguments over aspects of the UCC. The key arguments in its favour are, first, that it would make India secular in the true sense by subjecting all citizens to the same personal laws. The second and most vital argument is gender justice: a UCC would ensure equal rights for women across religions in matters governed by personal laws.

The key arguments against UCC are as follows. First, there can be potential conflict between the provisions of the UCC and guaranteed fundamental rights. Article 25 of the Constitution guarantees every person a fundamental right to practise a religion of one's choice. Article 29 provides a fundamental right to any section of citizens to conserve their distinct culture. The provisions of a UCC on personal matters may run contrary to scriptures and cultural doctrines in a religion. Second, the four States that have enacted UCC have exempted tribal population from its ambit. The reasons for such exemption are constitutional safeguards to protect tribal culture as well as the belief that many tribal customs in these matters provide adequate rights to women. However, exempting one section of society while making it compulsory for all other groups, including religious

minorities, is discriminatory.

What can be the way forward?

The most important reason to reform civil laws is to ensure equal rights for women in matters of marriage, divorce, maintenance, and inheritance. The right to religion under Article 25 is subject to constitutional morality and other fundamental rights, including equality. In Section 6A of the Citizenship Act, 1955 (2024) case, the Supreme Court held that practices such as casteism and gender discrimination, which run against the spirit of the Constitution, would not receive protection under Article 29. Thus, reforms in personal laws should not be viewed as violating Articles 25 and 29, as they uphold women's equality, an essential facet of constitutional morality. However, there is resistance to the UCC among minorities, particularly Muslims. In the Constituent Assembly, Dr. B.R. Ambedkar advocated a UCC but suggested that it could remain voluntary. He said Parliament could provide for the UCC to apply to citizens who declare they are willing to be bound by it.

On the other hand, the Law Commission in its Consultation Paper on Reform of Family Law (2018) opined that a UCC was neither necessary nor desirable at this stage. It argued instead for reforming discriminatory provisions across personal laws. The emphasis should be on achieving 'equality within communities' between men and women rather than 'equality between communities'. The report recommends legislative reforms required in various personal laws with respect to marriage, divorce, custody, adoption, maintenance, succession and inheritance, that would ensure gender justice. The suggestions of the Law Commission should be considered while legislating and implementing reforms in personal laws. (Rangarajan R is a former IAS officer and author of 'Courseware on Polity Simplified'. Views expressed are personal)

THE GIST

The Uniform Civil Code (UCC) would replace religion-based personal laws governing matters such as marriage, divorce and inheritance with a common set of secular laws

Supporters argue that it would promote secularism, national integration and gender justice, while critics point to possible conflicts with religious and cultural rights

The Law Commission has instead favoured reforming discriminatory provisions in existing personal laws to ensure equality between men and women

Concept

- **The trigger:** Union Home Minister Amit Shah has indicated that the Uniform Civil Code (UCC) would be implemented in all 21 NDA-ruled States by 2029; Uttarakhand has had a UCC in force since January 2025, while UCC bills passed by Assam, Gujarat and Madhya Pradesh await Presidential assent.
- **How personal laws work today:** Article 44 provides that the State shall endeavour to secure a UCC. India already has uniform criminal laws and common civil laws, but marriage, divorce and inheritance are governed by religion-based personal laws: Hindus by the Hindu Marriage Act (1955) and Hindu Succession Act (1956); Jains, Buddhists and Sikhs by Hindu laws; Christians and Parsis by their own personal laws; and Muslims by the Muslim Personal Law (Shariat) Application Act (1937).
- **Arguments for UCC:** First, it would make India secular in the true sense by subjecting all citizens to the same personal laws; second, and most vital, gender justice, a UCC would ensure equal rights for women across religions in matters currently governed by personal law.
- **Arguments against UCC:** First, potential conflict between UCC provisions and fundamental rights under Articles 25 (freedom of religion) and 29 (right to conserve distinct culture); second, the four States that enacted a UCC have exempted tribal populations from its ambit, which critics call discriminatory since one section is exempted while it is made compulsory for other minorities.
- **The constitutional-morality counter:** Article 25's right to religion is subject to constitutional morality and other fundamental rights, including equality; in the Section 6A Citizenship Act case (2024), the Supreme Court held that practices like casteism and gender discrimination would not receive protection under Article 29, so personal law reform upholding women's equality is itself an essential facet of constitutional morality.
- **The Law Commission's view:** Its 2018 Consultation Paper on Reform of Family Law opined that a UCC was neither necessary nor desirable at this stage, instead favouring reform of discriminatory provisions across existing personal laws emphasising 'equality within communities' over 'equality between communities.'

PAC Pulls Up Railways Over Gaps in Amenities Despite Promises

PAC pulls up Railways over gaps in amenities despite promises

The Hindu Bureau
NEW DELHI

The Public Accounts Committee (PAC) on Thursday expressed concern over persistent deficiencies in passenger amenities and sanitation across railway stations, with a recent Comptroller and Auditor General (CAG) audit finding that bio-toilets, projected as a game changer by the Indian Railways, were found deficient or non-functional at 491 of the 512 stations inspected.

The findings were discussed at a PAC meeting, headed by senior Congress leader K.C. Venugopal, which examined the CAG's Report No. 31 of 2026 on passenger amenities and sanitation at stations.

Sources said Mr. Venugopal acknowledged the scale and complexity of managing the Indian Railways, but said that should not hamper basic services for citizens. He noted that



K.C. Venugopal

four PAC reports on the subject have been presented since 2007, highlighting key deficiencies, but the Railways ignored the findings. He added that Ministry of Railways continued to submit action-taken reports, without making any significant improvements on the ground.

Sources said the PAC Chairperson directed the Ministry to review the committee's observations, made since its 2007 report, and submit a response within a month detailing measures to address the deficiencies.

"The meeting was one of the most important subjects concerning common passengers in this country. Basic amenities provided to passengers have serious discrepancies, including drinking water, seating arrangements, fans, and roofing on platforms... The audit has pointed out serious lapses on the part of the Railways, which we are examining... After one month, we will call another meeting with Railway officials and we will discuss this" Mr. Venugopal said after the meeting.

The latest audit noted that while the Ministry had informed the Parliamentary Standing Committee on Railways in 2020-21 that it had introduced bio-toilets, water-vending machines and Wi-Fi facilities, several shortcomings remained. Audit teams found deficiencies in water-vending machines at 29 of 77 stations, and Wi-Fi facilities at 65 of 380 stations.

Concept

PAC Pulls Up Railways Over Gaps in Amenities Despite Promises

- **The trigger:** The Public Accounts Committee (PAC) expressed concern over persistent deficiencies in passenger amenities and sanitation across railway stations, following a recent CAG audit finding that bio-toilets projected as a game changer by Indian Railways were found deficient or non-functional at 491 of the 512 stations inspected.
- **The committee's response:** Venugopal acknowledged the scale and complexity of managing Indian Railways but said that should not hamper basic services for citizens; he noted four PAC reports on the subject have been presented since 2007 highlighting key deficiencies, but the Railways ignored the findings, continuing to submit action-taken reports without significant improvements on the ground.
- **What was found deficient:** Serious discrepancies in drinking water, seating arrangements, fans and roofing on platforms; despite the Ministry informing the Parliamentary Standing Committee on Railways in 2020-21 that it had introduced bio-toilets, water-vending machines and Wi-Fi facilities, audit teams found deficiencies in water-vending machines at 29 of 77 stations and Wi-Fi facilities at 65 of 380 stations.
- **Next steps:** The PAC Chairperson directed the Ministry to review the committee's observations made since 2007 and submit a response within a month detailing measures to address the deficiencies, with a follow-up meeting to be called after a month to discuss the Railways' response.

Does the BRICS Summit Signify a Shift for Indian Foreign Policy?

Does the BRICS summit signify a shift for Indian foreign policy?



Ajay Bisaria

served as High Commissioner to Pakistan and Canada and is the author of 'Anger Management: The Troubled Diplomatic Relationship Between India and Pakistan'



Happymon Jacob

Author of 'India after Non-Alignment'

PARLEY

With a strong pushback against unilateral western sanctions; criticism of Israel over the killing of civilians, the attacks on Lebanon, and the forced occupation of Palestinian territory; and support for UN reform as well as a BRICS payment mechanism, the New Delhi Declaration of 2026 has been likened to India's foreign policy from its non-aligned past. But was it a compromise by New Delhi to build consensus, or will the statement, and Prime Minister Narendra Modi's close engagement with the leaders of Iran, Russia, and China, have a bearing on India's foreign policy? Ajay Bisaria and Happymon Jacob discuss the question in a conversation moderated by Suhasini Haidar.

Is the New Delhi declaration a return to non-alignment or just momentary rhetoric?

Ajay Bisaria: Broadly, the declaration is in keeping with India's foreign policy, whether that is strategic autonomy and multi-alignment or multi-vector engagement. In terms of optics, India is more on the front foot and less apologetic than it used to be. India is getting more and more comfortable in a non-western forum, saying that it is emphatically part of it. While it doesn't necessarily mean a shift in posture, it does suggest a greater degree of comfort with a different set of optics.

Happymon Jacob: The BRICS summit is under spotlight and things under spotlight look bigger and shinier than they really are. BRICS is a political platform; not a security platform. I don't think India's policy today is that of non-alignment at all. Non-alignment was a strategy for a weak state in a bipolar world. Today, we are in a different kind of world and the desire in India is to become one of the poles in a multipolar world. There is a reference to the Bandung Spirit (Non-Aligned Movement) in the BRICS declaration in pursuit of a fairer, more inclusive, and representative multilateral system. But that is nostalgia, not real policy.

How important are optics such as the Modi-Xi-Putin handshakes or the Prime Minister reaching out to the Iranian President at a time when these leaders represent the "anti-Western lobby"?

HJ: The optics are, in some ways, the substance here. Chinese President Xi Jinping had not been to India in nearly seven years. And we had the Abu Dhabi Crown Prince (Khaled bin Zayed Al Nahyan) sitting at the same table. In some ways, the photograph is the message. At the BRICS



Russia's President Vladimir Putin, Prime Minister Narendra Modi, and China's President Xi Jinping pose with other leaders during the BRICS Summit. AFP

outreach session, a lot of powers who don't otherwise get into great power conversations were present. So, there was a lot of socialisation happening inside the platform and on its margins. But I think we should understand that this is not really having an impact on how the world is being shaped. The declaration calls for exercising restraint and protecting civilians and civilian infrastructure and pointedly recalls the respective national positions of each member. It is fantastic, but the argument here is about optics, not common positions.

AB: I would agree that these multilateral fora are often performative to a degree and therefore all optics matter. But in a multilateral document, you can say the silent part aloud; what a country won't say in a national statement, it can say aloud in a high-level multilateral summit. For instance, everyone knows that the phrase "unilateral coercive measures" is about U.S. actions. So, you're not really saying we condemn U.S. action on so-and-so date; you're simply saying that we are against U.S. tariffs and [western] sanctions. There is an understanding now that what is said in a multilateral document can be different from a national position.

Every BRICS summit since 2022, including the 2024 summit in Russia, has made a reference to Ukraine. The New Delhi Declaration is the first time that references to Ukraine have been dropped. Why?

AB: My guess would be that it was a Russian veto. In the Rio BRICS declaration last year, there was even condemnation of a Ukrainian attack on Russia without an equivalent condemnation of anything Russia had done. So this time, instead of just condemning Ukraine, they might have decided to drop the whole thing entirely. It is very disappointing that a major multilateral geopolitical forum doesn't call for belligerents to end the war, but instead stays silent. That is an error of omission. I suspect the



Broadly, the Delhi declaration is in keeping with India's foreign policy, whether that is strategic autonomy and multi-alignment or multi-vector engagement

AJAY BISARIA

Russians said, no, we don't accept it, and in the interest of having a consensus, it was dropped.

HJ: I think India has no particular reason to push for that language to be present in the declaration because we have quite clearly sided with the Russian Federation in this war, indirectly if not directly. There must have been Russian push but I see no reason why there could not have been some neutral language to put in [references to Ukraine], given the precedent (of previous BRICS joint declarations).

The condemnation of Israel in the statement is very strong. Does this represent a shift for India given the PM's speech on standing "shoulder to shoulder" with Israel during his visit in February 2026?

AB: The big picture is that India is trying to establish neutral and balanced positions on both conflicts, and therefore not be seen as backing only one side in either. It has taken safety in the language of the United Nations. There's a specific mention of the UN Security Council Resolution 2803 of November last year, which spoke about an International Stabilisation Force and a Board of Peace. Some of the language has been drawn from there. The overall posture is: let's try to be balanced and reasonably neutral.

HJ: There is a clear disjunction between the statement and what Prime Minister Modi told the Israeli parliament. Perhaps the declaration is in some way intended to counter the perception that India was getting too close to Israel. The two-state solution has always been India's position, so the declaration doesn't contradict Indian policy there. But with the UAE, Egypt, Iran, and Indonesia in the room, there was only so much India could do to push back against the harshness of that language. What Prime Minister Modi told the Israelis in Israel is emotional and consequential. But what is written in the BRICS Declaration is multilateral, symbolic, and not very consequential. I would still say the balance is tilted in favour of Israel as a partner.

How significant are the paragraphs on economic issues, particularly on intra-BRICS trade using payments in national currencies? These 10 or 11 countries represent 40% of the

global economy, and 25% of global trade. Could they pose a challenge to the G7?

HJ: Indian policy has two parts. One is the support for local currency payment mechanisms. I don't think India has supported a permanent payment mechanism under the ambit of BRICS. I think there is an acknowledgement that there is no one-size-fits-all approach as far as currency settlement payment mechanisms are concerned. I would think twice before signing on to a non-U.S. dollar payment mechanism, which I believe will mean the next big currency or the next powerful currency. And unfortunately, China's currency is going to be that big currency.

AB: BRICS is a counterpoint to the G7, an economic grouping that also has geopolitical responsibilities. But I think India also finds itself at an intersection with the G7, because it is a sort of permanent invitee to the G7, along with Australia and South Korea. I have made the argument elsewhere that the G7 should dissolve itself and become the Democratic 10 (D10), including these three countries. I think that is the real strategic autonomy or multi-vector engagement, where India becomes the bridge between the east and the west, but also a voice of the south.

Will any of the decisions at BRICS see their way into future Indian foreign policy? Or is this just one moment with BRICS countries?

AB: I think this is a moment of success in Indian diplomacy in terms of conducting a major international event. In November, there will be another opportunity to meet global leaders at the ASEAN-East Asia Summit in the Philippines, followed by Prime Minister Modi's visits to the U.S., Canada, and Brussels, where he could potentially secure three trade agreements. I think that's what diplomacy will be about: multi-vector engagement; keeping all stakeholders engaged, in multiple directions.

HJ: India has only so much diplomatic capital. Therefore, it is important to pick our battles, forums, and partners. I think we should be present in those rooms where global rules on AI are being framed, and where the future of space governance is discussed. I don't think the next world order is going to be made in forums such as the BRICS but in those silent small rooms.



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www.thehindu.com

Concept

- **The framing question:** With its pushback against unilateral Western sanctions, criticism of Israel, and support for UN reform and a BRICS payment mechanism, the New Delhi Declaration (2026) has been likened to India's non-aligned past was it a genuine shift, or just a compromise to build consensus?
- **Ajay Bisaria's view:** The declaration is broadly in keeping with India's existing foreign policy of strategic autonomy and multi-alignment; India is more on the front foot and less apologetic in a non-Western forum, suggesting greater comfort with different optics, without necessarily a shift in posture.
- **Happyman Jacob's view:** The BRICS summit is under the spotlight, making things look bigger than they are; BRICS is a political, not a security, platform, and India's current policy isn't non-alignment at all, non-alignment was a strategy for a weak state in a bipolar world, whereas India today wants to be one of the poles in a multipolar world.
- **The Israel criticism, a shift?:** The declaration's strong criticism of Israel is notable given PM Modi's 'shoulder to shoulder' remarks during his February 2026 Israel visit; the view is that India is trying to appear neutral and balanced on both conflicts, even though there is a clear disjunction between the multilateral BRICS statement and what Modi told the Israeli Parliament directly.
- **On local-currency payments and the G7:** BRICS represents about 40% of the global economy and 25% of global trade; India supports local-currency payment mechanisms but is wary of a permanent non-dollar BRICS payment mechanism, given China's currency could become the dominant beneficiary, India sees itself as a bridge between the G7 and BRICS rather than committed to either bloc.
- **The final assessment:** This is seen as a moment of success in Indian diplomacy for hosting a major international event, but with limited diplomatic capital, India must pick its battles and partners carefully, the real shaping of the next world order is expected to happen in smaller, less visible forums (on AI rules, space governance) rather than in platforms like BRICS.

In Bolivia, a New Cat Species Identified — First in Over a Century

In Bolivia, a new cat species identified— first in over a century

Reuters
September 17

A DIMINUTIVE wild cat that inhabits Bolivia's cloud forest has been identified as a previously unknown species, marking the first time a new living cat species has been formally named and described in over a century.

The cat, called Tilcayo by local communities, is part of a group called tiger cats found across much of South America.

It was found in Bolivia's lush Yungas forest, a mountainous region where forests are often covered by clouds and surrounded by high humidity, according to researchers. It

measures about 18 inches long and weighs around 1.4 kg, making it smaller than the average domestic cat. Researchers used genetic data to confirm that the cat is a new species, and gave it the scientific name *Leopardus tilcayo*, retaining its local name.

"Its fur is light brown ... with irregularly shaped rosettes across its body," said Paola Nogales-Ascarrunz, a National Geographic Explorer and one of the authors of the study describing the newly identified species published on Thursday in the journal *Current Biology*.

Little is yet known about the cat's biology and lifestyle. Remains of small rodents in scat samples suggest they may form



A *Leopardus tilcayo* cat, the newly identified species at the Senda Verde animal refuge in the Yungas region, Bolivia. REUTERS

part of its diet, while camera-trap evidence indicates it could be more active at night, Nogales-Ascarrunz said.

Tiger cats are so-called cryp-

tic species, meaning they cannot easily be distinguished merely by appearance, said evolutionary biologist and study co-lead author Jonas Lescroart of Uni-

versity of Antwerp in Belgium.

Tiger cats previously had been considered a single species, but genetic studies decades ago suggested the existence of multiple species.

Referring to the new species, Lescroart said, "Our information at this moment is limited to the two live individuals that we examined, and a small number of camera-trap records."

One of the live cats is a 10-year-old male that now lives in Senda Verde Wildlife Sanctuary after being kept by a local family in their home.

Observing the Bolivian cat drew interest because "its characteristics did not match the descriptions, most of them

based on Brazilian cats," Nogales-Ascarrunz said. "This made us wonder: what tiger cat do we actually have in Bolivia?"

The team analysed DNA from 38 cats sampled across several South American countries, including eight museum specimens. The study found that tiger cats are in fact five genetically distinct species.

"We never expected this Bolivian tiger cat to be a separate species, and no one had ever proposed it as a different animal, subspecies or otherwise," Lescroart said.

Genetic analysis suggested that the Tilcayo lineage separated from other tiger cats about 1.4 million years ago.

Concept

- **The discovery:** A diminutive wild cat inhabiting Bolivia's cloud forest has been identified as a previously unknown species, the first time a new living cat species has been formally named and described in over a century.
- **The cat:** Locally called 'Tilcayo,' it is part of a group called tiger cats found across much of South America; found in Bolivia's lush Yungas forest, it measures about 18 inches long and weighs around 1.4 kg, smaller than the average domestic cat.
- **Naming:** Researchers used genetic data to confirm the cat is a new species and gave it the scientific name *Leopardus tilcayo*, retaining its local name.
- **What's known about it:** Its fur is light brown with irregularly shaped rosettes across its body; little is known about its biology and lifestyle, though remains of small rodents in scat samples suggest they form part of its diet, and camera-trap evidence suggests it could be more active at night.
- **Why it's hard to identify:** Tiger cats are so-called 'cryptic species,' meaning they cannot easily be distinguished merely by appearance; previously considered a single species, genetic studies decades ago suggested multiple species existed, and this study found tiger cats are in fact five genetically distinct species. **Cryptic species are two or more distinct species that look physically identical (morphologically indistinguishable) but are genetically distinct**
- **How the discovery was made:** The research team analysed DNA from 38 cats sampled across several South American countries, including eight museum specimens; current information on the new species is limited to two live individuals examined and a small number of camera-trap records, with one 10-year-old male now living at Senda Verde Wildlife Sanctuary after being kept by a local family.
- **The researchers' surprise:** The Bolivian tiger cat's characteristics didn't match descriptions based on Brazilian cats; genetic analysis suggested the Tilcayo lineage separated from other tiger cats about 1.4 million years ago, and the study was published in the journal *Current Biology*.

Russia Sanctions Bill: Tool for Trump, Worry for India

Russia sanctions Bill: Tool for Trump, worry for India



SUKALP SHARMA &
RAVI DUTTA MISHRA

THE US House of Representatives on Wednesday passed a sweeping Bill aimed at squeezing Russia's revenue from oil and gas exports amid the war in Ukraine. The Bill includes provisions for charging up to 100% tariffs on the top five buyers of Russian energy — India is the second-biggest export market for Russian crude.

The 'Lindsey O. Graham Sanctioning Russia and Iran Act of 2026' — a watered-down version of a proposed legislation initially backed by the late US senator and named after him — received the US Senate's (upper house) approval last month.

The Bill, which gives discretionary powers to Donald Trump on implementing its provisions, now just needs the US President's sign-off after the lower house's vote.

For India, the developments are significant. The country depends on imports to meet over 88% of its crude oil needs, and Russia currently accounts for nearly half of these imports. It remains to be seen if and when Trump turns the Bill into law through his signature, and how his administration implements its provisions, given the energy market crisis amid the West Asia conflict.

A key point to remember is that the Bill does offer some room for workarounds and concessions from Washington. One thing appears certain though: A law like this will give the Trump administration an additional lever to potentially exert pressure on India at a crucial stage in the bilateral trade agreement negotiations.

The Ministry of External Affairs said on Thursday that the government remains committed to ensuring the nation's energy security "through diversified sourcing and on the basis of evolving market dynamics".

The Bill and the energy market

Even for Trump, taking away millions of barrels of Russian oil from the global market when energy flows from West Asia remain highly constrained wouldn't be prudent.

In that context, it's worth noting that

• Russian oil makes up nearly half of India's oil imports

• Oil imports from Russia (in mbpd) • Total oil imports (in mbpd)
• Share of Russian oil (%)



SOURCE: KPLER, MBPD: MILLION BARRELS PER DAY

earlier this week, Trump called on Ukraine to halt strikes on Russian refineries, given the runaway oil and petroleum product prices amid stifled supplies in the global market. So will he now risk taking more Russian oil off the market by imposing punitive tariffs on countries buying Russian crude in large quantities?

At least till the West Asia crisis persists, Trump might want to exercise restraint and caution in implementing the proposed legislation in full force.

Doing the opposite would worsen an already worrying supply situation and send oil and fuel prices soaring even higher, something that the Trump administration wouldn't want ahead of the midterm polls in the US later this year.

On its part, India would most certainly move to communicate its energy concerns to Washington, something that was done last year as well when the original draft of the Bill was mooted.

India has been in touch with US authorities over the proposed legislation. The MEA statement said: "This issue has been discussed at high levels in recent months with various US interlocutors. Its potential implications for not just the bilateral rela-

Implementing the Bill's 100% tariffs on top Russian oil importers could upend the energy market. Will Trump use it as leverage in trade talks?



A Russian tanker. India depends on imports to meet over 88% of its energy needs, and Russian oil is a key part of that mix. GETTY

tionship but also the international energy market have been very clearly articulated by the Indian side."

"Passing the Bill under these circumstances would be economic insanity, even for the US itself," Abu Dhabi-based energy analyst Natalia Katona told *The Indian Express* on Wednesday. "US diesel crack spreads (margins) have already reached \$14 per barrel, largely because of the absence of Russian diesel from the market. Any logical economic assessment would argue against passing this Bill. However, given the level of political opportunism within the current administration and its apparent economic blindness, we should be prepared for anything," she said.

Trade talks

Apart from energy flows, the Bill creates a second worry for India. It is yet to enter into a trade agreement with the US — it had only signed a framework agreement in February — and the US President might use the proposed law as leverage to exert pressure on Indian negotiators.

In fact, before the US Supreme Court struck down Trump's tariff powers, the US President had indeed threatened India with

reciprocal tariffs amid the trade negotiations.

Trump in February had lost the authority to impose "reciprocal tariffs" after the US Supreme Court had ruled that the US president's did not have the authority under the 1977 International Emergency Economic Powers Act to impose broad import duties. Since then, the administration has been finding newer ways to impose trade restrictions.

Now, trade experts say that Congressional approval places Russian oil-related tariffs on stronger legal ground. If the Act is signed, the US Trade Representative will identify the targeted countries and recommend tariff rates. These countries would normally have 180 days to reduce Russian energy imports or negotiate with Washington. The Bill does give powers to the US President to waive the application of its provisions, India is expected to push for those, if the Bill comes into force, according to industry experts and analysts.

The new version of the Bill proposes tariffs of up to 100% on the top five buyers of Russian oil and natural gas, against the proposal of a blanket 500% tariff on buyers of Russian energy in the original version.

While this reduction in proposed tariffs appears meaningful on paper, the cap is still too high for India.

Why Russian oil is key

With much of the West shunning Russian crude following the country's February 2022 invasion of Ukraine, Russia began offering discounts on its oil to willing buyers. This is how a peripheral supplier became India's biggest source of crude, displacing traditional West Asian suppliers.

Last year, the US did impose additional penal tariffs on India over its Russian oil imports, which was followed by a sizeable reduction in New Delhi's imports of Moscow's crude. But the West Asia war turned the trend on its head, as Russia was the only viable supplier of scale for an energy import-dependent India.

Analysts say that despite the threat of sanctions, Russian crude remains the most practical and competitive source of supply for Indian refiners and is extremely difficult to replace in the current market.

According to vessel tracking data from Kpler, India imported 2.08 million barrels per day of Russian oil in August, accounting for 45% of its total oil imports.

Thank You,